

sought entry of default. Hearing on the Order to Show Cause was on May 18, 2026. Plaintiff did not respond or appear. On May 22, 2026, the Court issued the current Order to Show Cause and the Order of Sanctions. All of these Orders have been mailed the same address and none have been returned as undeliverable. The Court will not disturb the previous Order of Sanctions but will **DISCHARGE** the current Order to Show Cause.

The Court notes that Proof of Service of Summons was filed on July 17, 2025. While counsel declared that they promptly began preparing for default judgment in September 2025, default has not been entered. There is no justification for the delay. The matter is continued to **Tuesday, September 8, 2026 at 9:00 a.m. in Department 63** for status of default and default judgment. If a default judgment is not on file prior to September 8, 2026, the Court intends to issue an Order to Show Cause Re: Sanctions to Plaintiff and counsel in the amount of \$500 for failure to timely obtain default and default judgment. **No appearance is necessary on today's calendar.**

IN RE: FITZGERALD

CASE NUMBER: 26CV-0210192

Tentative Ruling on Petition for Change of Name: Petitioner Teri Linn Fitzgerald seeks to change her name to Noeme Zoe Tallescadi. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

JONES, ET AL. VS. DIETRICK

CASE NUMBER: 23CV-0203841

Tentative Ruling on Motion for Summary Judgment: Defendant/Cross-Defendant Jamie Ray Robertson (Robertson) moves for summary judgment on the Complaint filed by Plaintiffs Tiffany Jones, Christopher Beisel, and Raeven Jones Beisel (Plaintiffs) on December 8, 2023. Plaintiffs oppose the motion.

Request for Judicial Notice. Robertson requests the Court take judicial notice of the Complaint, Cross-Complaint, and Doe Amendment filed in this matter. These requests are granted pursuant to Evid. Code §§ 452(d) and 453. Robertson also requests the Court take judicial notice of the California Highway Patrol Traffic Collision Report. This request is denied, however, as noted below, the report is admitted into evidence for the purposes listed in Evidentiary Objection 1.

Evidentiary Objections. Plaintiffs make eleven objections to the evidence submitted by Robertson. The Court rules as follows:

1. Overruled. The Court is not accepting the CHP report for the truth of the matter, but for the fact that Plaintiffs were aware of the facts asserted therein and that Robertson's name and contact information were included.
2. Overruled.
3. Overruled.
4. Overruled.
5. Overruled.
6. Overruled.
7. Overruled.
8. Overruled.
9. Overruled.
10. Overruled. It is not clear what Plaintiffs are objecting to. While page 135 of the deposition transcript is not attached, the facts asserted are present in the deposition testimony provided.
11. Overruled. See Objection 1.

Merits. Summary judgment may be granted where it is shown that the action has no merit or that there is no defense to the action. CCP § 437c(a). The Court must determine from the evidence presented that there is no